

States. It is not an offense against the United States to solicit or attempt to suborn another person to commit perjury.

There are no common law offenses against the United States; an offense, to be indictable in the Federal courts, must be one created and defined by act of Congress. *United States v. Hudson*, 7 Cranch, 32; *State v. Wheeling Bridge Co.*, 13 How. 563; *United States v. Britton*, 108 U. S. 193. An indictment under cl. 1 of § 5440, Rev. Stat., must allege, as the object of the conspiracy, a statutory offense against the United States. *United States v. Payne*, 22 Fed. Rep. 426; *Re Wolf*, 27 Fed. Rep. 611; *United States v. Adler*, 49 Fed. Rep. 736; *United States v. Taffe*, 86 Fed. Rep. 113; *United States v. Melfi*, 118 Fed. Rep. 899; *United States v. Britton*, 108 U. S. 193.

At common law, subornation of perjury is the offense of procuring a man to take a false oath, amounting to perjury, who actually takes such oath. 1 Hawkins P. C., Curw. ed., 435; 2 Bishop on Criminal Law, § 1197.

By § 5393, Rev. Stat., it is provided that "Every person who procures another to commit any perjury is guilty of subornation of perjury." The offense against the United States constituted by this section is identical with the common law crime of subornation of perjury. It is essential, under this section, as at the common law, that perjury shall in fact have been committed. *United States v. Dennee*, 3 Woods, 39; *United States v. Wilcox*, 3 Blatchf. 393; *United States v. Evans*, 19 Fed. Rep. 912; *United States v. Howard*, 132 Fed. Rep. 325; *United States v. Cobban*, 134 Fed. Rep. 290.

If an actual attempt to suborn the commission of perjury does not constitute an offense against the United States, a conspiracy by two or more persons to solicit or to attempt to suborn other persons to commit perjury is not a conspiracy to commit an offense against the United States, and is not punishable under § 5440, Rev. Stat.

The ruling of the court that perjury at the final proof was within the averments of the indictment was prejudicial error.

The charge is limited to alleged perjury in the preliminary